

	GeoComm School Safety Subscription Services Contract (“Agreement”) Contract No: 20260413DCG
Geo-Comm, Inc. (“GeoComm”) EIN # 41-1811590 1100 West St. Germain Street, Suite 300 St. Cloud, MN 56301 Phone: (320) 240-0040 Email: contracts@geocomm.com	Dallas Center Grimes Community School District (“Customer”) Scott Blum – Superintendent 2405 W. 1st St – PO Box 680 Grimes, IA 50111 Phone: 515-992-3866 Email: scott.blum@dcgschools.com

GeoComm School Safety Subscription Services

GeoComm will continue to provide GeoComm School Safety subscription services to support indoor maps previously developed by GeoComm under the Critical Incident Mapping contract between GeoComm and the Iowa Department of Education. This Agreement ensures continuity of services previously provided to Customer under the statewide contract and transfers financial responsibility for such services from the Iowa Department of Education to Customer effective May 1, 2026. This Agreement does not add, modify, or reduce the scope or level of subscription services.

Pricing and Payment

Quantity (# of School Campuses)	Annual Rate per Campus	Annual Total	Subscription Length	Contract Total
7	\$610.00	\$4270.00	14 months	\$4981.67

Services will be provided annually from May 1, 2026 to June 30, 2027.

Customer agrees to pay GeoComm \$4981.67 invoiced on May 1, 2026 with payment due by July 15, 2026.

Customer Authorization

By signing Agreement, Customer agrees to the terms and conditions attached to this contract as Exhibit A.

Customer Authorization	
Signature	
Print Name	
Purchase Order # (if applicable)	
Date	

Exhibit A – Contract Terms and Conditions

This Agreement is made by and between **Customer** organized under the laws of the state of Iowa and **Geo- GeoComm** a Minnesota corporation with its principal offices at 1100 West St. Germain Street, Suite 300, St. Cloud, MN, 56301.

The parties agree to the following:

Section 1 – Scope of Work

Upon execution of Agreement, GeoComm will provide solutions and services as on page 1 of Agreement.

Section 2 – Pricing and Payment Terms

Customer agrees to the pricing and payment terms outlined on page 1 of Agreement.

Section 2.1 – Disputed Invoice

If Customer disputes any part of an invoice, then Customer must notify Supplier in writing as to the specific amounts contested and the reasons for such dispute on or before the Due Date of the invoice. Customer agrees to pay in a timely fashion and in accordance with Section 2 – Pricing and Payment Terms of the Agreement any part of an invoice that is not disputed.

Section 2.2 - Late Payment for Undisputed Invoice

Customer shall pay the amounts indicated in the Agreement for the Services delivered by GeoComm. Unless otherwise specified in this Agreement, GeoComm may invoice the Customer for the amounts specified in Section 2 – Pricing and Payment Terms upon their acceptance. Customer shall pay GeoComm the full amount of such invoices in U.S. Dollars via Electronic Funds Transfer (EFT) within thirty (30) days of the date of the invoice (Due Date). Except for any amounts reasonably disputed by Customer in writing, GeoComm may assess, and Customer shall be liable to pay a late charge at a rate of one and one-half percent (1.5%) per month or the highest rate permitted by law, whichever is less, on all unpaid amounts from the Due Date until paid in full.

Section 3 – Standards of Work

GeoComm agrees that the performance of work described in this Agreement and pursuant to this Agreement shall be done in a professional manner and shall conform to employ the care and skill ordinarily used by members of GeoComm's profession.

Section 4 – Changes in the Work

The Customer may, at any time by written order, make changes within the general scope of the work including but not limited to, revisions of, additions to, or subtractions from, or portions of the work. If any change order causes an increase or decrease in the cost of or time required for the performance of any part of the work under this Agreement, an Amendment/Addendum will be done and signed by both parties.

Section 5 – Excusable Delays

Neither GeoComm nor the Customer shall be responsible for delays or lack of performance resulting from acts beyond the reasonable control of the party or parties.

Section 6 – Disclaimer of Warranties and Limitation of Liability

To the fullest extent permitted by applicable law, and notwithstanding any other provision of this Agreement, the total liability, in the aggregate, of GeoComm and GeoComm's officers, directors, partners, employees and consultants, and any of them, to the Customer and anyone claiming by or through the Customer, for any and all claims, losses, costs or damages, including attorneys' fees and costs of any nature whatsoever or expenses resulting from or in any way related to this Agreement, including the solutions and services delivered by GeoComm hereunder or the use thereof by Customer, shall not exceed the total compensation received by GeoComm in fees under this Agreement. It is intended that this limitation apply to any and all liability or cause of action however alleged or arising, unless otherwise prohibited by applicable law.

Except as specifically represented herein, the goods and services provided by GeoComm pursuant to this agreement are **“AS” IS” AND, TO THE EXTENT PERMITTED BY APPLICABLE LAW, WITHOUT ANY WARRANTY OR CONDITION, EXPRESS, IMPLIED OR STATUTORY, AND GEOCOMM SPECIFICALLY DISCLAIMS ANY IMPLIED WARRANTIES OF TITLE, MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE AND NON-INFRINGEMENT. GEOCOMM DISCLAIMS LIABILITY FOR ERRORS OR OMISSIONS IN CONTENT; ANY IMPLIED WARRANTY ARISING FROM COURSE OF DEALING OR USAGE OF TRADE; AND ANY OBLIGATION, LIABILITY, RIGHT, CLAIM OR REMEDY IN TORT, WHETHER OR NOT ARISING FROM NEGLIGENCE.**

Section 7 – Disclaimer of Patent License

Nothing contained in this Agreement shall be deemed to grant, either directly or by implication, estoppels or otherwise, any license under any patents or patent applications of GeoComm. Except, the Customer shall have the normal non-exclusive royalty-free license to use that is implied or otherwise arises by operation of law in the sale of a software license.

Section 8 – Software User Terms of Use

“GeoComm Software Authorized Users Terms of Use” found at www.geocomm.com/legal applies to this Agreement.

Section 9 – Termination

Either party, upon thirty (30) days written notice to the other party, may terminate an Agreement for violation of the terms and failure to cure any deficiency within a reasonable time after notice thereof. In the event of termination for just cause by the Customer, GeoComm shall refund all amounts received to that point. In the event of termination for just cause by GeoComm, the Customer shall forfeit any funds paid. If statutory funding is cancelled, the Customer may terminate agreement and shall only be liable for services provided prior to termination.

Section 10 – Relationship of Parties

The parties understand that GeoComm is an independent contractor and not an employee of the Customer. The Customer will not provide fringe benefits, including health insurance benefits, paid vacation, or any other employee benefit for the benefit of GeoComm as a function of this agreement.

Section 11 – Insurance

GeoComm has comprehensive general liability and workers compensation insurance for both personal injury and property damage with limits no less than those required under Customer State law. Minimum limits for GeoComm liability insurance shall be in the amount of \$2,000,000 for any number of claims arising out a single occurrence under a single limit or combined limit or excess umbrella general liability insurance policy.

GeoComm waives any rights to recover damages from the Customer for any injuries that GeoComm and/or its employees may sustain while performing services under this agreement that are in any way a result of the negligence of GeoComm or its employees or agents

Section 12 – Data Confidentiality

GeoComm agrees to review, examine, inspect or obtain Customer data only for the purposes described in this agreement, and to at all times hold such information confidential. The obligation to protect the confidentiality of confidential information disclosed to the other party shall extend for a period of seven (7) years following disclosure and shall survive early termination of this Agreement. All data, whether digital or hardcopy, provided to GeoComm by the Customer shall remain the legal property of the Customer, and shall not be distributed, sold or utilized by GeoComm for any purposes other than those defined in this Agreement, without the express permission of the Customer.

Section 13 – Records Retention and Availability

GeoComm agrees that the Customer, the State Auditor, or any of their duly authorized representatives at any time during normal business hours and as often as they may reasonably deem necessary shall have access to and the right to examine, audit, excerpt, and transcribe any books, documents, papers, records, etc., which are pertinent to the accounting practices and procedures of GeoComm and involve transactions relating to this Agreement. GeoComm agrees to maintain these records for a period of seven (7) years from the date of termination of this Agreement.

Section 14 – Notices

All notices under this agreement shall be mailed to Customer physical address listed on page 1 of this agreement and to GeoComm as follows:

Geo-Comm, Inc.

Brian Jacobson, Chief Financial Officer
1100 West St. Germain Street, Suite 300
St. Cloud, MN 56301
Phone: (320) 240-0040
E-mail: bjacobson@geocomm.com

Section 15 – Entire Agreement

This Agreement contains the entire agreement of the parties and there are no other promises or conditions in any other agreement whether oral or written. This agreement supersedes any prior written or oral agreements between the parties.

Section 16 – Severability

If any provision of this Agreement shall be held to be invalid or unenforceable for any reason, the remaining provisions shall continue to be valid and enforceable. If a court finds that any provision of this agreement is invalid or unenforceable, but that by limiting such provision it becomes valid and enforceable, then such provision shall be deemed to be written, construed, and enforced as so limited.

Section 17 – Laws to be Observed

GeoComm will, at its expense, obtain all permits and licenses, pay all fees, and comply with all federal, state and local laws, ordinances, rules, regulations and orders applicable to GeoComm's personnel and performance of this Agreement. GeoComm has an Affirmative Action Plan in place to ensure nondiscrimination and fair hiring practices.

Section 18 - Applicable Law

If there is any dispute concerning this Agreement, the laws of the Customer's state will rule if required by customer's funding or legal policy, otherwise the State of Minnesota laws will apply.

Section 19- Subcontractors

GeoComm reserves the right to engage subcontractors for the fulfillment of services outlined in this agreement, provided the subcontractors meet the standards and qualifications agreed upon by both parties. GeoComm shall remain fully responsible for the performance and deliverables of any subcontractors engaged under this agreement.